EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 53143/13
Mirza MAMMAD VALIYEV
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 9 January 2018 as a Committee composed of:

Erik Møse, *President,*
Síofra O'Leary,
Lətif Hüseynov, *judges,*

and Anne-Marie Dougin, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 25 July 2013,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant, Mr Mirza Mammad Valiyev, is an Azerbaijani national, who was born in 1965 and lives in Sumgayit. He was represented before the Court by Mr F. Namazli, a lawyer practising in Azerbaijan.

2. The Azerbaijani Government ("the Government") were represented by their Agent, Mr Ç. Asgarov.

3. The applicant complained under Articles 6 and 11 of the Convention that the refusal by the State authorities to register an association which he had founded had amounted to a violation of his right to freedom of association and that the civil proceedings that he had initiated in this respect had been unfair.

4. The applicant's complaints detailed above were communicated to the Government.

5. On 12 February 2017 the applicant informed the Court that he wanted to withdraw the application since the matter had been resolved and the association he had founded had been registered.

THE LAW

6. In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention or its Protocols, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 1 February 2018.

Anne-Marie Dougin	Erik Møse
Acting Deputy Registrar	President